

A Short History
of the Worshipful
Company of
Horners

BY

H. G. ROSEDALE, D.D.

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*** START OF THE PROJECT GUTENBERG EBOOK A SHORT
HISTORY OF THE WORSHIPFUL COMPANY OF HORNERS ***

A SHORT HISTORY

OF

**The Worshipful
Company of Horners**

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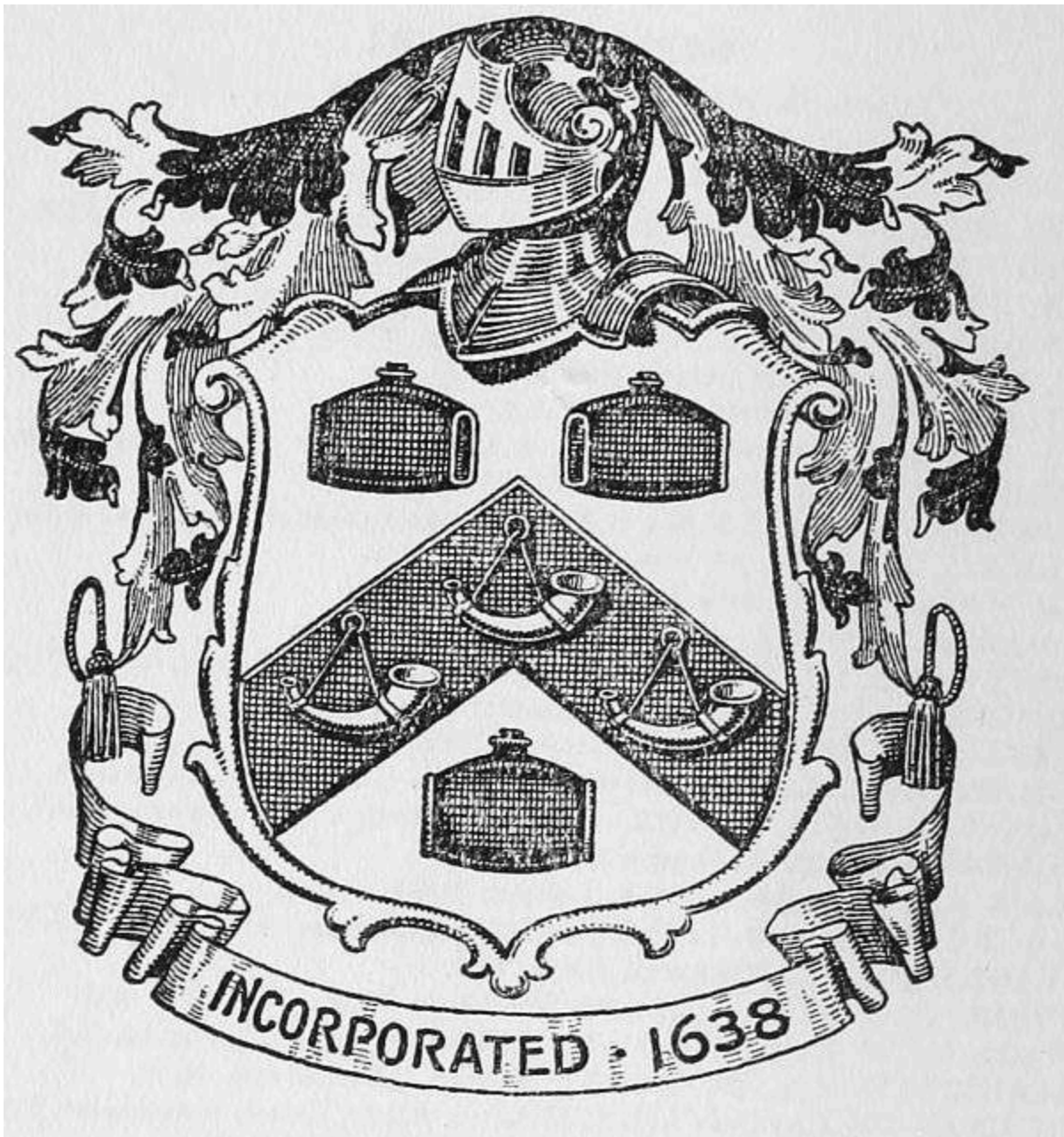
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PREFACE.

The discovery of the “Old Book of the Worshipful Company of Horners,” which has probably been missing for some 250 years, has brought added interest to the consideration of what is, perhaps, the oldest of the City Gilds.

In studying the documents and compiling the account of that book, recently distributed to the members of the Company by the kindness of the late Master, Mr. Edmonds, I was drawn to take in hand the lengthy and difficult task of reconstructing the life history of this interesting Craft Gild. Such a work is the product only of years of patient labour, but, in the meantime, at the request of the Court, I am glad to offer some preliminary details which may serve at least to show the age and dignity of the Worshipful Company of Horners.

I have endeavoured, where possible, to incorporate passages from the late Mr. Compton’s paper before the British Archæological Society, but, owing to many discoveries having been made which were not at his disposal, I have had to take a different course in some respects.

I wish, however, to state that this short history cannot in any sense be considered a complete or even sufficient account of the Company, but must hide behind the expressed wish of the Court that, in this instance, it should be of modest dimensions.

H. G. ROSEDALE, D.D.



A SHORT HISTORY OF THE WORSHIPFUL COMPANY OF HORNERS.

Origin of Gilds.

The study of Gilds, their origin and development, is amongst the most fascinating of all literary pursuits, but though many whose names rank high in the world of letters have gone deeply into the problems which the subject presents, the early days of gild life, at least, in this country, are still to some extent shrouded in the mists of speculation.

Whether Craft Gilds came to England from the far-off glories of Greece and Rome, whether they were the descendants of the early Saxon or Danish “blood brotherhoods,” or even derived partly from the one and partly from the other, is still a moot point.

There are practically no records of any importance of Craft Gilds in this country before the arrival of the Normans, though during the time of the Roman occupation there must have been many such extant. At quite an early period of the Roman occupation, we know that the Gild of Smiths, “Collegium Fabrorum,” existed in this country.

At a later period it is clear that England was covered with a network of Frith Gilds, but whether these were Trade Gilds in the accepted sense or not has yet to be shown. It seems probable, however, that they were Agricultural Gilds enforced upon the inhabitants by their Saxon conquerors, and that in the more populous neighbourhoods and towns, craftsmen and merchants were included under their own special “tything” or possibly even had their own “hundred”.

Whether this were the case or not, it will be obvious to all that in Saxon and Norman England alike, wherever several persons were plying the same trade, there must have existed some sort of organization for mutual

protection and for the instruction of others. Throughout the known world from the very earliest periods, workmen of the different classes have always formed their own aggregations and have always associated themselves together for mutual assistance and protection. The need for something of this sort must have been very urgent in days when there was less security to life and property, and in days when, as we are led to suppose, the Saxon rulers felt scant sympathy for the towns where trades would be found to exist most extensively.

Antiquity of Gilds in England.

The more we study mediæval life in our own country, the more impossible it becomes to imagine any regular trade as existing apart from some official or semi-official organization, combining one or more of the following obligations: Control of the workers, education of novices, civil representation (generally through some influential patron or head), and nearly always carrying out the work of a burial and insurance society. That such a banding together of those, whether merchants or craftsmen, interested in any particular occupation, must have existed during the Saxon period with the object of promoting one or more of the objects mentioned, is hardly open to doubt. It would be specially in the towns, such as London, in which, as Sir Lawrence Gomme has pointed out, the Roman ideals of organization still persisted, even into Norman times, that Gild life or its analogue would be most definitely marked.

Gild, not Guild.

Such Societies, Unions, or Combinations for common interests, whether of Trade, Religion, or social needs, were called Gilds, the word being derived from the Anglo-Saxon *Gildan* or *Gildare*, to pay, an allusion to the contribution demanded from every member towards the common fund.

Antiquity of the Horner's Craft.

It may be justly claimed that amongst the earliest trades or crafts of this country was that of the Horner, who was indispensable to the community, inasmuch as he was the purveyor of many articles absolutely necessary for domestic purposes. In the days, for instance, of Kings Ina and Alfred metals of any kind were rare and consequently costly. Articles required for eating and drinking, such as cups, plates, forks, etc., as well as vessels for the preservation of liquids and powders, were made from horn, that being the least expensive and the most

easily attainable material for those who had risen above the use of wooden articles for similar purposes.

Laws of Ina.

That trades did exist throughout the Saxon period is clear, nor should it be doubted that among the more important of those trades was that of the Horner. Indeed, though little else of a commercial character is alluded to in the laws of King Ina (A.D. 688-726), those laws lay down the price at which horns are to be bought and sold, and thereby indicate the importance of the horner to the community. “Bovis cornu decem denariis valeat Vaccæ cornu duobus denariis valeat.”—No mean price, surely, at that early period.

Horn Tenure.

Not only are horns mentioned in the early Norse Runic inscriptions (see *Deutsches Literatur Zeitung*, April 2nd, 1910), but there have been, from the earliest days, many well-known instances of beautifully worked horns used as a method of conveyancing property. Ulphus’s Horn, a drinking horn now at York, is, perhaps, the best known example. It was presented by him to the Church in token of the conveyance of his lands to the Church Authorities. King Edgar granted privileges to Glastonbury Abbey by means of a horn. For a very long period the family of Pusey held the village of Pusey by virtue of a horn, given to William Picoli by King Canute. Edward the Confessor granted the Rangership of Bernwode Forest, Bucks, to be held by a horn, while Randal de Meschines, third Earl of Chester, conferred on Allan Silvestris the Bailywick of the Forest of Wirall by delivering to him a horn, which was ever after preserved at Hooton. Ingulphus, Abbot of Croyland, mentions the horn amongst those things whereby land was conveyed in the Conqueror’s reign. This recalls the lines of Wordsworth in the “Horn of Egremont Castle.”

“Eustace pointed with his lance
“To the horn which there was hanging,
“Horn of the Inheritance.”

* * *

“Who of right claimed the Lordship
“By the proof upon the Horn.”

Drinking Horns.

Both Pliny and Cæsar allude to the elaborate horn cups of their period. Johannis Salisburiensis tells us that the Danes used horns as well as the Saxons, and Giraldus Cambrensis mentions the Horn of St. Patrick.

Sometimes these horns were so skilfully made that they could be used both for blowing and drinking; *vide* Chaucer's "Frank Tale," l. 2,809: "And drinketh of his bugle horn the wine." Perhaps, however, the most interesting and historic horn cup was that which Witlaf, King of Mercia, gave to the Abbey of Croyland, "cornu mensæ suas ut," etc.—the horn from his own table that the elder monks might drink out of it on Festivals and Saints' Days, and that when they gave thanks, they might remember the soul of Witlaf the donor. Ingulphus mentions that when the Monastery was almost burnt down this horn was saved.

Medical Horns.

From Payne's "English Medicine in Anglo-Saxon Times" we ascertain that during the tenth and eleventh centuries, at least, the Horners' trade was called into use by the apothecary. The author relates that in "cupping" operations and the administration of clysters, horns were used, indicating a nicety of manufacture which must have placed the trade on a high level.

Importance in Saxon times.

To such a pitch of development had the trade of a Horner attained at least 250 years before the Norman Conquest, that even the patens and chalices used at the Church services were made of this substance, as may be evidenced from the fact that at the Council of Chelsea, held A.D. 789, after careful discussion, it was decided that the chalices and patens used for ecclesiastical purposes should no longer be made of horn, but of metal, no doubt to distinguish them from similar articles which had already come into general use for common and domestic purposes.

At this time glass was probably almost, if not entirely, unknown in England, and, in consequence, thin sheets of horn had to be manufactured to serve many of the purposes to which glass is now applied.

These facts, and the general tendency of town life in this country, make it practically certain that long before the tenth century the Horner's trade, in common with some others, was in full swing, and with it that which we may deem inseparable from any considerable trade at that time, something in the nature of what we now call a Trade or Craft Gild.

Horners' probably the oldest City Gild.

Both tradition and documentary evidence are agreed that the Horners' Gild dates back to the far off ages of antiquity, and we may justly claim that its foundation is as early as, if not anterior to, any of the existing City Companies.

Old book of the Worshipful Company of Horners.

Considerable light has been thrown on the vicissitudes of the Horners' Gild by the recent discovery, as well as recovery, of the most interesting and ancient MSS. book already alluded to. The existence of this book, which formerly belonged to the Company, and was, in fact, its official record, was brought to the notice of the Clerk of the Company by Dr. Warner, of the British Museum. After many negotiations between Mr. Howard Deighton and the then owners of the volume, it was purchased for the sum of £40.

A detailed account of this precious possession has been given in the form of a publication entitled "Some Notes on the Old Book of the Worshipful Company of Horners," which was distributed to the members of the Company and their guests at their last Livery Dinner, by the late Master, Mr. J. T. Edmonds.

Though records relating to Craft Gilds in the eleventh, twelfth and thirteenth centuries are very meagre and difficult to discover, the "Old Book of the Worshipful Company of Horners" has proved extremely useful in helping to build up a consecutive history of this extremely early Gild. It demonstrates the fact that at least as early as the fourteenth century, both Horners and Bottlemakers were taking their full share of civic and commercial life.

The Gild in Saxon days.

Probably, during the Saxon period, the workers in horn, in common with other craftsmen, were enrolled amongst the members of the Frith Gild and not differentiated until the Anglo-Norman period. It might even be admitted that the Horners' Gild was a subdivision of one of the many "Gilds Merchant" so prominent as mercantile forces in the eleventh and twelfth centuries; but it is more than probable that before the end of the eleventh century, so important a trade as that of the Horner would have begun to assert itself separately and individually, more especially as there does not seem to have been any larger or more important Gild under which it could have found shelter.

Horn Fair, 1268.

Horners' Statutes in 1284.

We do not know whether the Horners' Company had any connection with "Horn Fair," which took place at Charlton, in Kent, and for which Henry III granted a Charter in 1268. Of this fair, Philpot, writing in 1639, tells us it was called Horn Fair because of "the great plenty of all sorts of winding horns, cups and other vessels of horn there bought and sold." We are, however, on sure ground when we point to an interesting proof of the great antiquity of the Horners' Company, which comes to us from the official letter books of the City of London. In Letter Book A, fol. 40, 12th Edward I (September 8th, 1284), we find that the ancient Gilds are drawing up Rules for revision by the authorities, an event which, no doubt, took place every few years in early times. The entry includes the following:—"The same day the said John (Pesemers) received the Statutes of the Horners for correction."

Notable Horners in 1303.

In 1303 (31st of Edward I), an incident took place which illustrates at once the prominence of Horners at the time and the variety of persons who were members of the Gild. The Royal Treasury at Westminster had been robbed. Richard of Pudlicote and William du Palais were accused. During the Inquisition held by the Bishop of London it transpired that amongst the friends of this Richard were several persons, notably one "Jacobus le Horner et Boten^r manens apud Kandelwickestrate," whose character is described thus:—"It is unknown whether they were aware of the felony—tñ male credunt de eis" (*i.e.*, they have a bad name). As a set-off, however, against this undesirable person, it is recorded that two other Horners, viz., Rogerus le Cornur and Stephanus le Cornur succeeded in arresting Robert le Convers, another actor in the drama.

Notable Horners in 13th and 14th centuries.

Throughout the thirteenth and fourteenth centuries there is frequent mention made of Horners, many of whom seem to have been persons of great importance. In 1284 we have recorded the name of Thomas att or de Corner, and in 1285 Clement le Cornur. In 1295, of William le Horner, and others are mentioned in the years 1226, 1320, 1342, 1346, 1352 as doing some official act. This frequent mention of Horners to be found in early records does not apply to London only, but to other places. For instance,

Peter le Horner, resident at the Heywarde, Cambridge, is mentioned as paying taxes in that town in 1314-1315.

15th century.

In 1441 (20th of Henry VI), we are told that “at the instance of ‘Sympkin horner of London,’ together with two others, the King directed letters to the Mayor and Bayliffs of Hampton Sandwys, asking how Englishmen repairing to ‘Pruce, Hanze and Danske’ are treated.”

Well might a learned legal luminary, delivering judgment in 1692, say:—“A Horner is a particular Trade and a very ancient Company in London!”

Horners take
Bottlemakers under
their protection.

In the year 1362 the Horners were in so flourishing a state that another Craft Gild, the Bottlemakers, who, as we read in the MS. book just referred to, dated back, like the Horners, to “time out of mind,” found it desirable to place themselves under the protection of the Horners’ Company, and, for a period of 115 years, remained under its protection, until, in the sixteenth year of Edward IV the two Companies became amalgamated. The interesting document which authorized the fusion of the two Companies is to be found in Letter Book L, fol. cxvi, of the City of London. It prays that the Company of “Bottell Makers,” which had been for some time intimately associated with the Horners, be united with it and become one and the same Company, and “that from hensfurth the saide persones of both the said Crafts may be as bretheren and accupie and Joyne together as well in all things to be borne and doone within the said Cettie. As in observing,” etc.

The petition to the Mayor and Aldermen was granted, and from that day forward the three bottles as well as three horns have emblazoned the arms of the Horners’ Company.

Important Record.

In the very ancient and interesting book belonging to the Horners’ Company there are two early entries relating to the period during which the two Companies were legally separated though in a certain close relation to each other. The entries, which are identical, are as follows:—“The bottellmakers have continued in the Company of the Horners a hundred fourscore nine yeres and nine monthes, wrytten the last daie of November Anno Dni One Thousand five hundred fiftie and seaven.”

Horners, the 26th City
Gild in 1376.

Following upon this remarkable evidence of official recognition as a Craft Gild, carrying with it

all the legal privileges which were later conferred by recorded Charters, we find as early as 1376 an entry of the fact that the Horners' Gild was recognized as the twenty-sixth out of forty-eight "mysteries of the City of London," and successively sent two of its members to the Court of Common Council, not only to represent the members of the Gild in the election of a Mayor and other officers of the City, but also to form a representative body to withstand all encroachments on their liberties and those of the City generally, which the claims and pretensions of Edward III seemed to threaten.

Petition to regularize
Proceedings granted
1391.

This event preceded a time of great commercial activity, when many political circumstances compelled the City Craft Gilds to legalize themselves by obtaining from the Civic authorities (now so considerably strengthened by the success of the resistance offered to Edward III), a recognition of the practices which for a very lengthy period they had made use of, in the conduct of their affairs.

Gild Officials and
their importance.

Such an application took place in 1391, during the reign of Richard II, on the part of the Horners' Company. The petition was mainly concerned with the recognition of their right to elect two Wardens to preside over the Horners in accordance with the ancient practice common amongst other Gilds. At this time it would appear that there were no Masters elected, but that the position of Master of a Gild was filled either by the Alderman of the Ward or some other influential and important person, called the "Guardian," who represented the interests of the Craft on the Council of the Mayor and Aldermen.

According to Madox, in his "Firma Burgi," it would appear that a still earlier form was to elect an Alderman and two Masters for each Gild. This will readily account for the fact that some aldermanries were territorial, as in the case of the Knighten Gild, whose ruler was Alderman of the Portsoken Ward, others were connected with Gilds apart from locality, and possibly some were ecclesiastical or even commercial. A quaint illustration of this practice is found in the Confirmation of a Norwich Fraternity by Henry V. The members are authorized to elect an Alderman and two Masters, who, when the name of Gild was changed to that of Craft Mystery, became respectively the Guardian or Alderman and Wardens of the Mystery.

The privilege of electing Wardens was always in the forefront of every grant, since it was of great importance to the Crafts to have this right at a time when constant efforts were made to put in representatives and nominees of the monarch, in order to bring the Crafts, and, through them, the City of London, into subjection.

William Karlile and
Richard Baroun.

It is highly probable that in 1391 the deputation from the Horners' Gild on presenting its petition was introduced by one Richard Baroun, Horner, of London, Alderman of Aldgate, and Master of the Gild in 1391. He was not only the Guardianus or Master of the Gild, but a person of great importance during the reign of Richard II, being Horner to the King. His predecessor in the office of Alderman, it is interesting to note, was one William Karlile, Master of the Bottlemakers' Gild. This fact will help to explain the close relations existing between the two Crafts.

Confiscation of
Charters and their
return in 1397.

In a newly discovered MS. of great interest which is being edited by E. H. Dring, Esq., there appears the following passage, A.D. 1397 (? 1398):—"And thanne after the presentacion of the said supplication (from the Citizens of London to the King) ther were made mony blank charteres and all the men of every crafte of the said Cite as well as all manne servaunts and maisters were charged to come to the Guylde halle to sette her seales to the said blank charteres." It must, have been from this MS. that Stow gathered much of his information, and this passage was copied by Fabian in 1516, Grafton in 1659, and Hollingshead in 1577.

Richard II, furious with the citizens of London for assisting the Duke of Arundel, had taken the opportunity of a brawl in the City, to humiliate the citizens. He confiscated their charters and laid the City under a fine of £1,000,000. This was late in 1397, and the following Spring (which until March 25th was A.D. 1397, and after that date A.D. 1398, whence possibly the confusion in dates) the City, which, as we have seen, would be the Common Council, more especially as the King had imprisoned the Mayor and put in a "Custos" to govern, bought back the King's favour, and, consequently, their own charters, by the most expensive procession and gifts. All the brethren of each Gild, in return for this forgiveness, had to put their seals to these blank charters, which were an acknowledgment of the King's power and their willingness to do and pay what was left in blank in

that charter, so that the King could insert what he chose in the blank spaces, or, as Grafton puts it, “by which he might, when he would, undo any of his subjects.”

Amongst the Companies called upon to do this was certainly the Horners, who would not have been foolish enough to seal the “charters” had they not needed the support of the City in the maintaining their own prescriptive rights based on Royal grants. The term sealing is quite a natural one, inasmuch as no charters were signed until Tudor times.

Renewed activity.

Doubtless the troubles of the period and the expenses to which the fraternity had been put, caused the Gild to value its rights and to claim further recognition, even to the extent of promoting a special Act of Parliament. They did not seek to obtain a charter, be it noted, which rarely meant any advantage to the unfortunate persons who were practically compelled to accept such charters, but, on the contrary, in most cases proved to be an invasion by the Crown of former prescriptive privileges.

The Horners were successful in obtaining a special Act of Parliament in the year 1465. The Act is worth quoting as showing to what importance the Horners' Company must have risen by that date.

IV EDWARD IV, C. 8.

The Horners' Act.

“Our soveraigne lord the Kyng perceyving by grevous complaint made in this Parliamente, by men of occupation of horners beyng enfraunchysed in the Cytie of London, howe that the people of straunge landes hath come into this lande, and into dyvers partyes thereof, and hath boughte by the handes of theyr hostes and guydes, the great and chiefe stuffe of Englyshe hornes unwrought, of tanners & bochers, & cary the same over the sea, and there employ the same in dyvers workes, to the great damage of this land and to the finall preiudice of a great numbre of men beinge of the same occupacion: hath by the advice and assent of the sayd Lordes, & at the request of the sayd commons, and by the auctority aforesayd, ordeined established & enacted, that from the feast of Easter, which shall bee in the yere of our Lord God M.CCCCLXV, no maner straunger nor alien by himselfe or by any other, shal buy any

Englysh hornes unwrought of any Tanners, bochers, or any other persons Gathered or growing within the sayd city and, xxiii myles on every syde of the sayd city next adioyning. And that no Englishman nor other personne sell anye Englyshe hornes unwrought to any straunger or cause them to be sente over the sea, so that the sayd horners will buy the sayd hornes at lyke pryc as they be at the tyme of the making of this acte, uppon payne of forfayture of all suche hornes so bought, sold, or sent. And that the Wardeins of the sayd mistery for the tyme beyng by the sayd authority shall have full power to serch all manner ware perteyning to their mistery wrought or to be wrought in all places within the sayd citey of London, and xxiii miles on every syde next adioyning to the same citey, and within the Feyres of Sturbrydge and Ely in whose handes they may be founde, and if they by theyr serch fynd any suche ware or stuffe in any place within the sayd citey of London and xxiii miles next adioyning to the same citey or within the Feyres of Sturbrydge and Elye, in whose handes soever they be to sell, that is defective & insuffycient. It shall be lawful to them to take the same ware and stuffe, and bring it before the Mayre of the same citey of London, the mayre & bayliffes of the foresayd Feyres for the tyme beyng, and the same there beyng proved defective to be forfayt: the one halfe thereof to oure Soveraigne lord the king, and the other halfe to the sayd wardens, to be ordred at their pleasure. Provyded alwayes that after that me of the sayd occupacion within this land have taken out & chosen such as many hornes as shal bee nedefull to theyr occupacions: that then it shal be lawfull to them all and every of them and other persons of this realme of Englande, to sel and deliver al the hornes refused, which be not able to be occupied in theyr mistery to any straunger or other persons to send or cary beyond the sea or elles where, as shal please them.”

Bottlemakers
absorbed by Horners
in 1477.

This Act of Parliament must have proved of great benefit to the Horners; but with it came greater demands from the Company on the part of the King and the City. The frugal minds of the Craft rulers at once saw the advantage of paying one set of assessments instead of two, and asked that in future the Horners and Bottlemakers might be treated as one Company, and not be called upon to pay the shares of two separate Companies. Thus the prosperity of the Horners, coupled with the increasing demands for money made on the City Gilds, led to the union of the Horners and Bottlemakers just twelve years after the passing of the Horners’ Act, *i.e.*, in 1477

(sixteenth year of Edward IV), facts indicating in no uncertain way that the Horners must have been very firmly established and legally constituted at the time, both in order to make the assessments possible as well as to give them the right to absorb the Bottlemakers.

Deeds of Agreement.

Deed of 1590.

Deed of 1599.

In the reign of Elizabeth we find the Horners' Company carrying on its work as a Joint Stock Company. The stock being held in shares or half-shares, it therefore became necessary to place the Wardens, who alone had under the Act just mentioned, power to purchase horns, under some agreement to do so only for and on behalf of the members of the Gild. No doubt many such deeds were executed, but amongst the archives of the Company there are still two extant, the one dated 1590 and the other 1599. The parties to the deed are the Wardens and the rest of the members. The Wardens therein bind themselves to buy, and the other members not to buy, horns in London or twenty-four miles round. The horns bought by the Wardens are to be purchased for the use of the whole Company and to be divided equally between them by the Wardens. In the deed of 1599 the limit within which the purchase and sale of horns was prohibited was altered from twenty-four to one hundred miles "next in and about the City of London."

Horn industry an
English secret.

From a document in the possession of the Company it would appear that the horn industry was, during the fifteenth century at least, an English monopoly, and from the official documents of Germany, Holland and France the writer has been unable to discover a single record of such an industry existing before 1600. The following interesting sentence from a document which is dated 1455 (thirty-third year of Henry VI), illustrates the contention:—

"Inasmuch as the making of Hornes and other workes perteyning unto the said mystery be not perfectly had nor knowne in any region or place of the world, except in this land only: which causeth the people of other lands & places to resort & repaire unto this Citie for Hornes yeerly, unto the great proffitt & worship of the same Citie, whereas if such people of strange lands might cleerly & perfectly understand the cunning & feat of making of such English Hornes, would not heder repaire yeerly to buy such English chaffer," etc.

Consequently, the Wardens were expressly authorized the same year by the Mayor and Aldermen to punish any who should reveal the secret of the Craft to any stranger.

Exportation of Horns.

So valuable a trade, however, could not remain long unknown to the Continental nations, who were, in other respects, far in advance of England, and consequently the demand for English horns on the Continent became so great that, in spite of the Act forbidding the export of horns, the members of the Gild seem to have done a considerable trade in exporting horns, on the excuse that they were refuse horns. Indeed, so profitable did they find this traffic that, about 1590, two City men, the one a merchant and the other a scrivener, entered into competition with them and managed to secure from Queen Elizabeth,—no doubt for a substantial payment,—permission to export horns to the Continent, though not themselves members of the Horners' Company.

Competition by
Furner and Crayford.

The controversy which this occasioned between the Horners and their opponents, Symon Furner and John Crayford, is to be found amongst the records in the Manuscript Department of the British Museum.

Lord Burleigh attempted to bring about a compromise, and instructed a Mr. Carmarthen to endeavour to arrive at some arrangement between the contending parties, but in vain. The issue at stake was a vital one. The Horners claimed exclusive privileges under some Charter which they were evidently able to produce, accorded them by one of the Kings of England, whilst Messrs. Furner and Crayford argued their privileges under the "letters patent" granted by the Queen.

It would seem that the wealth and influences behind the private adventurers were stronger than those of the Company, which was already beginning to feel the pressure of competition from the Pouchmakers and Leathersellers, who dealt in the same kinds of wares, as well as from the introduction of glass vessels, etc., which took place in the sixteenth century.

Withdrawal from
public life.

From the year 1455 onwards, the Horners seem to have fallen into the background and to have disappeared from the arena of public life. This is not altogether to be wondered at, for, towards the end of the fifteenth century, and for nearly 200 years after, City Crafts or Mysteries were the object of predatory

attacks of so deadly a character, that though in 1455 we find forty-eight Crafts openly representing the City, in 1575 only twenty-eight Companies were to be found on whom the assessment for wheat could be placed. What the remaining Mysteries did is difficult to say, but no doubt they attempted to carry on their work unnoticed, either urging prescriptive rights, or claiming none, in order to avoid spoliation.

Horners forced to re-appear.

The once important trade, but now the “little craft of Horners” was evidently in this category, and had it not been for the necessity of fighting for very existence, when the export of horns was making their trade impossible by the increase in price of the raw material, they doubtless would have preferred to keep in the background, even at the end of Queen Elizabeth’s reign. This contention would seem the more reasonable from the fact that had not the previous Charters or Royal grants to the Horners’ Company been of very ancient date, and, consequently, almost forgotten, and had that Craft not been, as it were, keeping from the glare of public observation in order to avoid the cost of “Inspeximus’s,” it is unlikely that the advisers of Queen Elizabeth would have laid her open to the controversy which the grant of letters patent to Furner and Crayford was bound to produce.

1604. Repeal of Horners’ Act.

Petition to Parliament, 1610, and revival of Horners’ Act.

It must have been a great blow to the Company when, in the first year of the reign of James I, an Act (c. 25) was passed which repealed the Statute of 4 Edward IV; but in the seventh year of that King’s reign the Horners presented their petition to Parliament, stating, “that by reason of the repeal of the prohibition, the Company had grown so poor and decayed, as in a short time, if remedy be not provided, they and theirs shall be utterly undone;” and the Act is thereby revived except as to the powers of search in Stourbridge and Ely fairs, and a limitation of the price of horns thereby secured. A penalty was imposed of double the value of English horns sold unwrought to any stranger or sent over the sea; one moiety of the penalty to go to the informer and one moiety to the King.

1627. Letters patent from the King.

Notwithstanding this Statute, the exportation of horns still continued, and Letters Patent were granted by King Charles I, in the third year of his reign, 1627, again prohibiting the exportation of horns until the Company should first have

made choice of the best and most convenient number of the horns to supply the necessary occasions of the realm.

In spite of the protection afforded by these Acts and Letters Patent, the exportation of horns continued.

Evil days.

1635. New Orders
allowed.

These were evil days for the Horners' Craft, and it would appear that the Horners themselves were not entirely guiltless in the matter. Consequently, in 1635, to stem the tide of ill-fortune which seemed

to have set in, the Company approached the Mayor and Aldermen to give them fresh rules "for the reformation of the Crafte." The following rules were allowed and confirmed by the then Lord Mayor, Christopher Clitherow:—

1. Horns to be bought for the General good.
2. None to buy Horns within 20 miles of London.
3. Everyone to pay for his share as the Wardens shall think fit.
4. None to keep above one apprentice, except he hath been a partner or sharer with the said Company seven years at least, in which case he may keep two apprentices.
5. Apprentices shall be bound.
6. No one to be set to work at the trade unless he have served seven years.
7. Every journeyman to serve two years after having been made "free of the Company."
8. None to enter for their shares until called by the Wardens.
9. Anyone elected a Warden must serve the office or pay a fine of 20 shillings.
10. None shall sue or arrest another without permission from the Wardens.
11. The Wardens may commit offenders to prison with the consent of the Mayor.

For two years the Company exercised their powers under these new rules, but still harder times were in store for the Company.

Further troubles.

Whether as the result of an information laid by some member who was suffering under these stringent regulations, or, as would appear most probable, the King's growing need of money to carry on the coming political struggle between himself and his people, the Horners were suddenly discovered to be acting illegally. Under the powers conferred by the Act of 19 Henry VII, which was no doubt revived for the purpose, no Master, Wardens, or Companies could make any acts or ordinances except such as should be approved by the Chancellor and Treasurer of England or Chief Justice of either Bench, or three of them.

The Legal Plight of the Company.

Though doubtless this Act was never intended to apply to alterations or additions to regulations already in force, but rather to the establishment of new Companies, it became necessary for the Horners to comply with the regulations, and though it does not transpire whether they were compelled to pay any fines or not, they finally obtained confirmation of their new rules under the hands of Thomas Coventrie, Lord Chancellor, and Chief Justices John Branston and John Finch, but not until after they applied for and obtained a Royal Charter, and as Charles I, in order to assert Sovereign rights, was unwilling to admit ancient prescriptive claims, care was taken to justify this subversion of the ancient rights of the Gild, by stating in the Charter that the Horners had never been "incorporated."

Grave peril.

Difficulty evaded by purchase of new Charter.

The examination of the New Rules by the Judges just mentioned, had revealed the fact that the Horners were a Joint Stock Company holding property in perpetuity in opposition to the Statute of Mortmain. Here was a splendid opportunity for the King to reap a harvest, and nothing remained for the authorities of the Company but to obtain a Charter as soon as possible and to avoid the heavy penalties to which they would otherwise be subjected by assenting to the legal fiction that they had not acted as a corporation, and never had been one, but merely an association in existence from year to year, acting under ancient and well-recognized privileges. Whether this claim was technically correct or not, the antiquity of the Company was so great and the process of proving any breach so lengthy and difficult that no doubt Charles I thought it best to take

the cash payment which always accompanied grants and so close the matter. Thus the Charter of 1638, which is the only one now extant, was obtained, and the proceedings of the Company as a joint stock concern holding property in perpetuity were again legalized, though doubtless long before that time the right to hold property and to do all that was required of them as a Craft Gild had been regularly accorded to the members in the persons of their several "Guardians."

Charters of little value
in determining dates
of origin.

Like many other City Companies, the Horners have been accustomed to believe that this Charter, which in its preamble for obvious reasons takes for granted no previous Charter, was the first and only legal instrument authorizing them to carry on their work as a Gild. Very little reliance, however, is to be placed on the statements of the Charters of this period, which were often little more than a temporary instrument of protection against further encroachments on their resources and powers by the ruling monarch. For this very uncertain privilege large sums had to be paid, sums wrung again and again from the unfortunate City Gilds by threats of suppression.

It is more than probable that at all times Charters were freely purchasable by those who could afford to pay for them, and, having served their particular purpose, were as easily lost or mislaid. For all practical purposes, however, until the sixteenth century at least, they offer no indication whatever of the antiquity of any Company, even where they seem to state in the preamble that there has been no previous Charter, a statement which should be taken only to indicate that the Sovereign granting the Charter wishes it to be supposed that he, and he alone, is the person to whom the Company is indebted for its privileges, privileges which often existed only in name. In many cases the Charters were really encroachments by the State on the ancient privileges which had been inherited from the earliest times, and which were supported by Municipal law, against which State law waged continuous warfare.

Previous
Incorporations.

It is widely held by students who are not satisfied to be merely superficial that in very early days aggregate bodies were deemed to have perpetual succession without being "incorporated." When the King granted to a set of men to be a mercantile community, assembly, or meeting, this was considered sufficient to

incorporate them. As illustrating this virtual “incorporation” we may note the words of the eminent jurist, Dr. Williams, in his “Law of the Universities,” published only last year. He says:—“A corporation, the creature of the Crown, may exist by Charter or ‘prescription,’ which presumes a Charter, even in cases where historical evidence makes it morally certain that no Charters ever existed.” Consequently, in the Charters of Edward III (which meant little and were but a receipt for moneys loaned or given), there is no provision for a common seal, liberty to accept or buy land, or to sue and be sued, etc., all these being naturally taken for granted in the case of Gilds or similar organizations then existing. It is no doubt true that in the reign of Edward III Craft Gilds were generally chartered, *i.e.*, had their privileges *confirmed* by Letters Patent; yet, in still earlier days, as well as after the death of Edward III, it would seem that these bodies exercised their functions under special protection or on suffrance, probably always in return for their “fermes” or annual payment to the King.

Horners never an
adulterine Gild.

If further illustration were required, to demonstrate how great is the right of the Horners’ Company to rank amongst the earliest of the acknowledged Trade Gilds, that proof is to be found in the study of what are known as “Adulterine” Gilds. These were unwarranted or unlicensed Gilds, and from time to time were heavily fined. There is no mention, however, of the Horners having been among such Gilds thus swooped down upon by the King, though lists are given of those who were mulcted from the twelfth century. The Horners could not have escaped had they been unwarranted at the time, and must, therefore, have possessed indisputable rights.

Reference has been made to Richard Baroun and William Karlile.

Royal Grants must
have existed.

Richard Baroun, we read, was one “whom the King retained to serve him with Horns & other things pertaining to his Mistery, & to whom was granted the King’s livery of clothing every year, in the great wardrobe, as other Horners of his condition had been wont to receive.” Thus William Karlile was a man of considerable importance in his own time, and a man of great wealth. To suppose that so important a Craft Gild, under the patronage of such influential persons, would neglect to arm itself with every possible weapon of defence, such as Grants and Charters, is to suppose the impossible, and,

indeed, in the year 1455, towards the end of the reign of Henry VI, on petitioning to have further powers of administration conferred upon it, this Gild is expressly mentioned as having been already “enfranchised in the City of London,” a proceeding which could not possibly have been accomplished without something in the nature of a Royal grant. It would seem that owing to the very great antiquity of the Horners’ Company it held certain prescriptive privileges originally obtained by it or its “Guardianus” in exchange for certain goods from time to time supplied to the Royal household, and on this point further light may still be thrown. One such instance has come to light. Either the Company or the Guardianus in his official capacity as Horner to the King, would provide the Horn Comb used at the Coronation of every Sovereign until the time of Charles II. We have evidence that amongst the Coronation relics connected with Charles I which were sold, was a “Horn Comb.” This, in accordance with the practice even now in vogue at the Consecration of Roman Catholic Bishops, was used ceremonially after anointing the King’s head with oil.

Proof of earlier
Charter.

As a culminating proof that the Caroline Charter was not the first and only Royal grant held by the Horners’ Company, we have but to turn to the Correspondence recently found in the British Museum, and it will at once become evident that the Horners were possessed of a Charter long before 1638. Mr. Carmarthen, writing to Lord Burghley in 1597, says:

“The question resteth upon one word cheefly in thyr Charter,” etc., or, again, “By the king’s grant in theyre Charter,” etc. This may allude to a Charter granted by Edward IV, or, as seems probable, that in reality the “Cornuarii” were well established as a legalized Gild certainly not later than Richard II, and, in all probability, owned Charters of a much earlier date, which would be in the nature of special grants to the Guardian of the Gild, held by him, and would therefore at a later period not necessarily be in the possession of the Company. Moreover, on 30th of March, 1815, the Clerk of the Company stated, as appears by an entry in the Minute Book, that he had opened and examined the chest containing the documents relating to the Company, and he found that it contained ... “also the original Charters granted for establishing the Company,” etc. Had there been but one, it is improbable that the word would have been used in the plural.

Thus it will be seen that the Charter of 1638 is but an instrument reiterating and once more legalizing the acts which had been in vogue amongst the Horners for a very considerable time.

1638. Charter of
Charles I.

The Charter of Charles I provides that the Horners, Freemen of the City of London and Westminster and liberties and suburbs of the same, are incorporated by the name of “Master, Wardens, Assistants, and Fellowship of the Mistery of Horners of the City of London,” with power to purchase and hold freehold and leasehold estates of every kind and all manner of goods and chattels, and to grant, alien and dispose of the same, and by the same name to plead and be impleaded, and to have a Common Seal.

One of the said Fellowship is to be chosen the Master, two to be chosen Wardens, and ten or more of the Fellowship, Assistants. The Master, Wardens and Assistants, or the greater part of them, whereof the Master and one of the Wardens are always to be two, have power to make and alter, amend or make new, “reasonable laws and constitutions touching the Trade, Art, or Mistery, and for punishment and reformation of abuses, wrongful practices and misdemeaners, and for defraying the charges of maintaining and continuing the Corporation, and after what order they shall demean themselves in their office mistery and work.” And to impose such fines, amerciaments, or other lawful punishments upon all offenders as shall seem necessary; such fines, etc., to be raised for their own uses.

Robert Baker was appointed the first Master to continue in office until the 2nd February, 1638, and until another person was elected in his place. Christopher Peele and Thomas White were appointed first Wardens under the new rules and Charter. Ten brethren were appointed the first Assistants during their lives or good behaviour, and the Master and Wardens were upon retirement from their offices, to be assistants in the same manner. The Master and Wardens were to take oaths before the Master in Chancery to “well and truly execute their offices” before entering upon the same.

Power is given to the Master, Wardens, Assistants, and Fellowship to meet in their Common Hall or other convenient place upon the 2nd of February, if it be not Sunday, and if it be Sunday, then upon the next day after, to elect a Master and Two Wardens for the ensuing year; and they are to take their oaths of office before the late Master and Wardens, or two of them; and like

power of election is given until the next 2nd of February in case of the death or removal for misbehaviour of any Master or Warden during his term of office, and also in like manner to elect an Assistant on the death or removal of any of the Assistants appointed by the Charter.

Power is given of oversight, rule and search of all persons occupying, importing, exporting, or using the art or mystery of Horners within the cities of London and Westminster, and the liberties and precincts thereof, and of all manner of wares thereunto appertaining, to the intent that all delinquents may be discovered and punished. They may purchase for ever one house for a Hall not exceeding the yearly value of £40.

They are to elect one honest and discreet person as Clerk, and also appoint a Beadle.

Exercise of Rights,
1689.

Buying Horns, 1739.

The control continuously exercised by the Company over the trade, and finally secured to them in the Charter just mentioned, has never been abandoned, though at any rate for the present it is

not exercised. In the first year of William III (1689) the Horners' Company successfully prosecuted a Comb maker for pressing horns, he not being a "Horner." Maitland, who published his work in 1739, tells us that the Company "had of late appointed diverse of their members to attend the market of Leadenhall & those of the neighbouring counties for the buying of horns" to be sent to their common warehouse in Wentworth Street, Spitalfields, where they were made up into lots and divided amongst the several members, not omitting the widows and orphans, who also received their several shares.

Last legal claim,
1745.

Ceases as a trading
body.

The last occasion on which the Court exercised its rights against persons infringing its monopoly was in the year 1745. Having ascertained that certain persons not free of the Company had bought rough

horns and pressed them into lantern leaves, and were disposing of them within the City of London and twenty-four miles distant, proceedings were ordered to be taken against them, and, as a result, the Company successfully established its right to the monopoly in the manufacture of horn work in the City of London and twenty-four miles round. From that time forward the trade in horn declined, and during the second half of the eighteenth century,

the Company finally ceased to be a trading community. Thus ended the operative existence of a Craft Gild which from “time out of mind” until the present moment has had a useful and honourable career. The Horners’ Company has been practically contemporaneous with the history of England, and is, it may be believed, still destined to serve many a useful purpose.

Property.

In spite of legal incorporation the property of the Company has, from time to time, been vested in certain trustees, the last trust deed being dated 1756.

Minutes.

Annual Dinner.

The earliest Minute Book in the possession of the Company covers the period 1731 to 1796, and is extremely interesting as showing the care taken in the apprenticing of novices to the trade, in the appointment of its officers, and, perhaps most of all, in the unbroken continuity of the annual dinner held generally at some place outside the City, which though, at the time, partaken of only by the members of the Court, represented the annual feast of the mediæval Gilds, and finds its successor to-day in the Livery Dinner, which has become almost a matter of civic importance.

This ancient practice has long been associated with Trade Gilds, certainly as far back as 700 B.C. We may believe that the *deipnon* or feast of the *hetairoi*, or Greek Trade Gilds, must have had a long history before the time when such distinguished members as Lysymachus, son of Milesias, and the son of Thucydides, joined in them.

Favourite Inns.

During the eighteenth and first part of the nineteenth century the favourite inns selected for the annual dinner seem to have been the “Crown and Sceptre” at Greenwich, the “Plough,” or “Folly House,” Blackwall, the “Star and Garter,” Richmond, and, in much later days, the “North and South American Coffee House,” which latter, however, was probably used more for the ordinary meetings of the Company than for the annual dinner.

Aldgate the Horners’
Home.

It is a little difficult to define the area in which the Horners of London were originally located, but it may be somewhat vaguely described as the district of Aldgate. Many were the streets and alleys to which Horners have given a name, and one well-known Horn Alley was, until a comparatively late date, to be found on the

East side of Bishopsgate Street, and in Korneman's book on "Old Street Signs and Tablets" is an allusion to one with the following inscription:—"This is Horn Alley, 1670." In Stow's "Survey of London," 1633, the following passage occurs:—"I read in the 26th of Henry VI (1447), that in the parish of St. Dunstan's in the East a tenement called Horners Key was granted to William Harrington, Esq." Doubtless this alludes to a building used by the Horners for the purposes of their trade, at a time when all was *couleur de rose* with them, and it is extremely likely that upon further investigation this William Harrington will be found to be the Guardianus or Alderman of the Gild.

The warehouses of
the Gild.

Time, however, brought its changes, and when, in 1603-4, the Horners' Act was repealed, it would seem likely that they found it either impossible to continue to pay the rent, or, realising that disaster awaited them, may have sold the property, if it were theirs to sell. It is, however, certain that in 1604 the Company leased a house with storehouses and sheds in Wentworth Street, Whitechapel, for the term of 1,000 years at a ground rent of £4. When, in 1789, these premises were no longer required for the use of the trade, which had declined, they were let for £30 a year, and in 1879 were sold to the Metropolitan Board of Works and the money invested on behalf of the Horners' Company.

Was there a Horners'
Hall?

It has been stated that the Horners' Company never had a Hall. It is difficult to see quite why this statement has been made, for there is much to make the student of Gild lore think otherwise. The Charter of 1638 expressly provides for one, and, as in every other respect, it simply imposes the absolute conditions then existing, there would seem no reason to doubt that the sum of £40 per annum therein mentioned was the exact value of the property then held. The Bottlemakers would not have joined the Horners had the latter Company not had a hall or meeting place.

As with other Craft Gilds, the Fire of London probably proved very disastrous to the Company, and, no doubt, very little was saved.

The fact that there are hardly any deeds of importance anterior to 1666, that the Old Book of the Company, which has recently been recovered, after wandering so long, ceases to have an entry after 1636, together with the fact that the two or three early deeds which ante-date the Fire of London are in a

deplorable condition, as well as the fact that the Company owned a considerable amount of silver plate, which was sold in 1789, makes it not improbable that the Horners, like every other City Gild, had its regular Hall or meeting place.

Arms.

The coat of arms of the Company is Ar. on a Chevron sa., three bugles of the first between three leather bottles of the second.

Destruction of Gild monopolies.

In 1835 the Municipal Corporations Act gave the *coup de grâce* to any remnants of monopoly exercised by the extant City Gilds. That Act gave liberty to all either to buy or sell, and, by so doing, compelled most of the City Companies, *nolens volens*, to seek for a sphere of usefulness in other directions.

1837. Revived importance.

Though, as a trading Gild, the Horners' Company declined, it has steadily risen in reputation as one of the ancient mysteries of the City of London, and, in 1837, the Commissioners on Municipal Corporations classed it as fifty-fourth out of eighty-nine Companies there enumerated. In 1846 the Company petitioned the Court of Aldermen for a livery which was granted them, the number of liverymen being limited to sixty.

1882. Exhibition of Horn work.

In 1882 the Court of the Horners' Company organized an exhibition of Hornwork, both ancient and modern, which was held by the kindness of the then Lord Mayor, Sir Henry Knight, at the Mansion House. By a strange coincidence, and without any premeditation on the part either of the Lord Mayor or the Company, it was held on October the 18th, St. Luke's Day, which was the day on which the annual Horn Fair at Charlton took place. The exhibition of Horns and Hornwork far exceeded, both as regards quantity and quality, the most sanguine expectations of the promoters. So great was the interest shown by the public that it became necessary to keep it open for an extra day, and, during the four days of the exhibition, it was visited by no fewer than 7,000 persons. Amongst the exhibitors was Her Most Gracious Majesty the late Queen Victoria, who sent some interesting specimens from her treasures at Windsor Castle. In acknowledgment, of Her Majesty's kind consideration, and by her gracious permission, the Company presented to Her Majesty a print of the descriptive catalogue and the account of the

Company mentioned in the preface, bound in horn leaves, ornamented with a beautiful design from the South Kensington School of Art, selected after competition by the scholars. It is now in the King's private suite of rooms at Windsor Castle.

1900. Royal Casket.

In the course of the year 1900, at the instance of Mr. A. W. Timbrell, C.C., it was decided to present Queen Victoria with a horn casket in order to fittingly commemorate the new century. On being approached upon the subject, Her Majesty graciously accepted the offer. Before, however, the presentation could be made, her lamented death occurred. It was then decided to present the casket to King Edward, and on March 28th, 1901, the late King's Secretary wrote to the Clerk of the Company expressing His Majesty's pleasure in accepting the proposed gift.

The casket was made of selected specimens of the finest British bullock horn, mounted with massive silver and gilt straps, and ornaments of the Early English style of chasing. It is supported upon four pierced feet, the whole resting upon an ebony plinth, upon which is a silver plate bearing the names of the Master, the Wardens, and the Clerk. The whole enclosed in a handsome morocco case, forms one of the finest specimens of the Horner's art. Sir Francis Knollys, in acknowledging the presentation, stated that he was commanded by the King to renew the expressions of His Majesty's thanks to the Worshipful Company of Horners for the casket which they had presented to him, and that His Majesty admired it greatly and considered that it would form a great addition to the Horn Room at Osborne.

Another Royal Casket.

A similar casket, slightly different in design, was presented to His Majesty King George V on the occasion of his Coronation, and this, like the one presented to his revered father, has been designed and carried out by Mr. Deputy Millar Wilkinson, of Cornhill, the present Father of the Court.



It was constructed in the form of a cigar box, mounted with finely worked silver-gilt applied strap work, chased with lions' heads and dolphins, chased end handles; on the front is a circular plaque representing the arms of the Horners' Company. The casket is surmounted by a figure of St. George and the Dragon, the whole resting upon an ebony plinth, upon which is a silver-gilt plate bearing the names of the Master, the Wardens, and the Clerk. Enclosed in a handsome red morocco case, it forms a beautiful and unique specimen of the Horners' art.

The deputation which made the presentation was headed by the Worshipful Master, who, in the course of his address to His Majesty, said:—

“The Horners' Company, which is one of the most ancient of the City Guilds, in tendering the casket, desire to assure Your Majesty of their

loyalty to Your Throne and Person, and convey their respectful wishes for a long and prosperous reign.”

The King, in receiving the casket, remarked that it was a very beautiful piece of workmanship, and that he would value it the more inasmuch as it was presented to him during his Coronation year.

Further increase in
Livery.

In consequence of the continued prosperity of the Horners’ Company, due to many causes, doubtless, at a time when little life was being evinced, to the work of Mr. James Curtis, but especially in the present activity of its esteemed Clerk, Mr. Howard Deighton, it was found necessary in 1905 to apply again to the Court of Aldermen for an increase in the livery to the number of 100, which was granted subject to the livery fine being increased to £30.

Sic floreat Cornuarii!



TRANSCRIBER'S NOTE

Punctuation has been normalized. Variations in hyphenation have been retained as they were in the original publication.

*** END OF THE PROJECT GUTENBERG EBOOK A SHORT
HISTORY OF THE WORSHIPFUL COMPANY OF HORNERS ***

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